

attain the age of twenty-one years" (*g*);] or "to A. for her own use and benefit absolutely, having full confidence in her sufficient and judicious provision for her children (*h*), or, "being well assured that she will husband the means left to her for the sake of herself and her children" (*i*), [*138] or "to be applied by *her in the bringing up and maintenance of her children" (*a*). Instances of the creation of a *trust* are where property is given, "that he may dispose thereof for the benefit of himself *and* his children" (*b*), or "at her sole and entire disposal for the maintenance of herself *and* her children" (*c*), or "for his own use and benefit, *and* the maintenance and education of his children" (*d*), [or "for their own use and support of their children" (*e*)], or "at the disposal of the legatee for herself *and* her children" (*f*), or "all overplus towards her support *and* her family" (*g*), or to A. "for the education and advancing in life of her children" (*h*), [or to A. "and the said tenement I leave to the disposal of her, with a view that the said tenement may be disposed of as she may think proper for the maintenance and education of my two daughters" (*i*).] In a recent case (*j*), it was held that the circumstance of a trustee being interposed, instead of the property being given directly to the parent, was sufficient to show that no sub-trust was intended, but this view appears not to be supported by earlier decisions (*k*).

13. **Nature of such a trust.** — Where a trust is created, the person bound by it is the hand to administer it, and can sign

[(*g*) *Farr v. Hennis*, 44 L. T. N. S. 202.]

(*h*) *Fox v. Fox*, 27 Beav. 301.

(*i*) *Scott v. Key*, 35 Beav. 291.

(*a*) *Mackett v. Mackett*, 14 L. R. Eq. 49.

(*b*) *Raikes v. Ward*, 1 Hare, 445.

(*c*) *Scott v. Key*, 35 Beav. 291.

(*d*) *Longmore v. Elcum*, 2 Y. & C. Ch. Ca. 369; *Carr v. Living*, 28 Beav. 644; *Berry v. Briant*, 2 Drew. & Sm. 1; *Bird v. Maybury*, 33 Beav. 351.

(*e*) *Dixon v. Dixon*, W. N. 1876, p. 225.]

(*f*) *Crockett v. Crockett*, 1 Hare, 451; and see S. C. 2 Phil. 461; *Bibby v. Thompson* (No. 1), 32 Beav. 646.

(*g*) *Woods v. Woods*, 1 M. & Cr. 401.

(*h*) *Gilbert v. Bennett*, 10 Sim. 371.

[(*i*) *Talbot v. O'Sullivan*, 6 L. R. Ir. 302.]

(*j*) *Byne v. Blackburn*, 26 Beav. 41.

(*k*) *Gilbert v. Bennett*, 10 Sim. 371; *Longmore v. Elcum*, 2 Y. & C. C. C. 363; and see *Carr v. Living*, 20 Beav. 644.